IN THE HIGH COURT OF JUDICATURE AT BOMBAY
CIRCUIT BENCH AT KOLHAPUR
CIVIL APPELLATE JURISDICTION

INTERIM APPLICATION NO. 7911 OF 2025
IN
FIRST APPEALST NO. 16741 OF 2024

Vitthal Satvaji Janrao Since Deceased Through Lrs (1) Sunil Vitthal Janrao And Ors. … Applicants

Vs.

Executive Engineer Minor Irrigation (L.S.) Solapur and Ors. … Respondents

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Ms. Vaishnavi Shelake i/b Mr. Abhijit Kandarkar, for the Applicants.
Mr. S. H. Yadav, AGP, for the Respondent – State.

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CORAM : SHAILESH P. BRAHME, J.

DATE : 30th OCTOBER, 2026.

P. C. :

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SHANTANU SHANKARSA DHUDUM
Date: 2026.10.30 18:56:38 +0530

. Heard both sides.

2. Learned counsel for the Applicants seeks to condonation of delay in setting aside the abatement and bringing the legal heirs of deceased Applicant on record.

3. The cause of action survives against the legal heirs, who were necessary parties. There is no reason to infer any oblique motive on their part in not taking steps within time.

4. The delay stands condoned.

5. The abatement is set aside.

6. Leave is granted to bring legal heirs on record.

7. The application is allowed and disposed of.

(SHAILESH P. BRAHME, J.)